

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KWASI GILCHRIST,

Plaintiff,

-against-

Index No.:

Date Filed:

Plaintiff designates
KINGS COUNTY
as the place of trial

The basis of the venue
is Plaintiff's residence

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
EMILIO ORTEGA, and POLICE OFFICER "JOHN
DOE" (whose name and shield number is unknown),

Defendant(s).

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
September 1, 2016

Yours, etc.

LAW OFFICE OF IKE DIBIA



BY: Ike Dibia
Attorney for Plaintiff(s)
801 Franklin Avenue
Brooklyn, New York 11238
(718) 230-1517

To:

The City of New York
c/o Corporation Counsel
City of New York Law Department
100 Church Street
New York, NY 10007

P.O. EMILIO ORTEGA
79th Police Precinct
263 Tompkins Avenue
Brooklyn, NY 11216

P.O. JOHN DOE
79th Police Precinct
263 Tompkins Avenue
Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KWASI GILCHRIST,

Index No.:

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
EMILIO ORTEGA, and POLICE OFFICER "JOHN
DOE" (whose name and shield number is unknown),

Defendants.

-----X

KWASI GILCHRIST, (hereinafter "Plaintiff), by his attorney(s) THE LAW
OFFICE OF IKE DIBIA, complaining of the defendants THE CITY OF NEW YORK,
POLICE OFFICER EMILIO ORTEGA, and POLICE OFFICER :JOHN DOE"
(collectively referred to as "defendant officers"), upon information and belief, allege as
follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to
Plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the
deprivation of rights, privileges, and immunities secured to Plaintiff by the Fourth, Fifth
and Fourteenth Amendments to the Constitution of the United States, and by Title 42
U.S.C. § 1983; and arising under the law and statutes of the City and/or State of New
York.

THE PARTIES

2. At all times material to this complaint, Plaintiff was, and still is, a resident of the City of New York, who at all times material and relevant to this complaint resided, and still resides, in Kings County, City and State of New York.

3. Plaintiff, KWASI GILCHRIST is an African American male of full age.

4. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

5. At all relevant times, the defendants P.O EMILIO ORTEGA and P.O. "JOHN DOE", were and are police officers of the Defendant CITY OF NEW YORK, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, CITY OF NEW YORK Police Department (hereinafter "NYPD").

6. At all times herein, the defendant officers were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.

7. Plaintiff sues the defendants, P.O. EMILIO ORTEGA and P.O. JOHN DOE in their individual and official capacities.

FACTUAL ALLEGATIONS

8. On or about June 11, 2014, at approximately 5:45 p.m. Plaintiff, KWASI GILCHRIST was driving/operating a motor vehicle in the vicinity of Marcy Avenue, at or close to its intersection with Park Avenue and Ellery Street, County of Kings, State of New York (hereinafter "subject location").

9. That at that time, Defendant, P.O. EMILIO ORTEGA was operating a City of New York Police Department motor vehicle and stopped at a traffic light on Marcy Avenue, at its intersection with Myrtle Avenue, County of Kings, State of New York.

10. That at that time, Defendant, P.O. JOHN DOE was an occupant of a City of New York Police Department motor vehicle and stopped at a traffic light on Marcy Avenue, at its intersection with Myrtle Avenue, County of Kings, State of New York and being operated by Defendant, P.O. EMILIO ORTEGA.

11. The motor vehicle the Plaintiff was driving/operating was directly behind the NYPD motor vehicle being driven and operated by Defendant, P.O. EMILIO ORTEGA, on Marcy Avenue at the subject location.

12. That when the traffic light changed to a green signal Plaintiff pressed the horn in the motor vehicle he was driving and or operating.

13. That Defendant, P.O. EMILIO ORTEGA then proceeded to drive the NYPD motor vehicle forward and then stopped suddenly. Plaintiff waited until the NYPD motor vehicle began to proceed again before he continued to proceed on Marcy Avenue.

14. That when the traffic light on Marcy Avenue between Park Avenue and Ellery Street changed to a green light signal, Defendant, P.O. EMILIO ORTEGA suddenly stopped his NYPD motor vehicle.

15. That Defendant, P.O. EMILIO ORTEGA got out of his NYPD motor vehicle, approached the motor vehicle Plaintiff was operating, and then reached into the

motor vehicle in an attempt to lower the volume of the music that was being played in the vehicle.

16. That Defendant, P.O. EMILIO ORTEGA said “turn this off” and then punched Plaintiff twice on the left side of his face. Defendant, P.O. EMILIO ORTEGA also told Plaintiff to “never honk at a NYC officer again”.

17. That Defendant, P.O. EMILIO ORTEGA got back into his NYPD motor vehicle and left the subject location with P.O. JOHN DOE.

18. Upon information and belief, charges filed against Defendant, P.O. EMILIO ORTEGA with the New York City Civilian Complaint Review Board by Plaintiff for Abuse of Authority and Physical Force on June 14, 2014 were substantiated on or about April 1, 2015.

AS AND FOR A FIRST CAUSE OF ACTION: UNLAWFUL SEARCH UNDER
42 U.S.C § 1983

19. By this reference, Plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 18 of this complaint as though fully set forth herein.

20. Following Plaintiff's arrest, the defendants searched and/or caused Plaintiff and his property to be searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.

21. As a result of the foregoing, Plaintiff and/or his property was subjected to an illegal and improper search.

22. The foregoing unlawful search violated Plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

AS AND FOR A SECOND CAUSE OF ACTION: EXCESSIVE FORCE UNDER 42
U.S.C § 1983

23. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "22" as if set forth at length herein.

24. On or about June 11, 2014, the Defendant P.O. EMILIO ORTEGA apprehended the Plaintiff and punched him twice on the left side of his face.

25. The Defendants also deprived the Plaintiff of his right not to be deprived of life and liberty without due process of law as guaranteed by the Fourth and Fifth Amendments of the United States Constitution. All of the Plaintiff's rights were violated by defendants by use of brutal, excessive, unreasonable and unnecessary physical force upon the Plaintiff.

26. Upon information and belief, defendants CITY OF NEW YORK, P.O. EMILIO ORTEGA and P.O. "JOHN DOE" utilized this method of detaining and apprehending Plaintiff pursuant to a policy and procedure of Defendant CITY OF NEW YORK, which policy and procedure authorized such a method of apprehension in all cases where individuals attempt to evade arrest without consideration of the degree or nature of the wrongful conduct for which the subject is allegedly sought and without regard to the constitutional rights of life, liberty and due process of the individual.

27. As a proximate result of the conduct of the Defendants, the Plaintiff suffered mental, physical and emotional pain and suffering and was deprived of his United States Constitutional rights of life, liberty and due process, all to his damage in an

amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction over this cause of action.

28. By reason of the willful, reckless and malicious conduct of the Defendants, the Plaintiff is entitled to recover punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION: FAILURE TO INTERVENE
UNDER 42 U.S.C § 1983

29. By this reference, Plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.

30. Each and every individual defendant had an affirmative duty to intervene on each Plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.

31. The individual defendants failed to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.

32. As a consequence of said defendants' actions, Plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.

AS AND FOR A FOURTH CAUSE OF ACTION: MUNICIPAL LIABILITY UNDER
42 U.S.C § 1983

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “32” as if set forth at length herein.

34. Defendant CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

35. Defendant, CITY OF NEW YORK was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of the City of New York are not to arrest individuals where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

36. Defendant, CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

- A. Excessive force cannot be used against an individual who does not physically resist arrest.
- B. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

37. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to commit an assault/battery to Plaintiff's person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

WHEREFORE, Plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each Plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
September 1, 2016

LAW OFFICE OF IKE DIBIA



By: Ike Dibia
Attorney for the Plaintiff
KWASI GILCHRIST
801 Franklin Avenue
Brooklyn, N.Y. 11238
(718) 230-1517

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

KWASI GILCHRIST,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
EMILIO ORTEGA, and POLICE OFFICER
"JOHN DOE" (whose name and shield
number is unknown),

Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICE OF IKE DIBIA
Attorney(s) for Plaintiff
801 Franklin Avenue
Brooklyn, New York 11238
(718) 230-1517

Pursuant to 22 NYCRR130-1.1, the undersigned, an attorney admitted to
practice in the courts of New York State, certifies that, upon
information and belief and reasonable inquiry, the contentions
contained in the annexed document are not frivolous.

Dated: 9-1-2016


Ike Dibia

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
